

September 28, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003437 Capital One, N.A. successor by merger to Discover Bank vs. Michelle Mattingly

No appearances required. Pursuant to the request for dismissal filed on August 20, 2026 and resulting entry of dismissal of the entire action, the motion to quash service and dismiss is moot and was effectively vacated upon the dismissal of the entire action.

2. CL0004046 Crown Asset Management LLC vs. Somer Loen

No appearances required. In light of the proof of service of the Summons and Complaint filed on June 24, 2026, and on the Court's own motion, the OSC re Dismissal is dismissed. The matter remains calendared for court trial as indicated in the notice of trial issued on April 27, 2026.

3. CL0004063 NATIONAL COLLEGIATE STUDENT LOAN TRUST 2007-1, a Delaware Statutory Trust(s) vs. Heather M Lahart

No appearances required. In light of the proof of service of the Summons and Complaint filed on July 2, 2026, and on the Court's own motion, the OSC re Dismissal is dismissed. The matter remains calendared for court trial as indicated in the notice of trial issued on April 27, 2026.

4. CL0004103 Velocity Investments LLC vs. Alejandra H Cuevasmunguia

No appearances required. In light of the proof of service of the Summons and Complaint filed on July 27, 2026, and on the Court's own motion, the OSC re Dismissal is dismissed. The matter remains calendared for court trial as indicated in the notice of trial issued on May 6, 2026.

5. CU0001681 Randy Ryan Agno et al vs. James L Gould, IV. et al

Plaintiffs/Cross-Defendants' motion requesting the court use its authority to manage proceedings before it to order Cross-Complainants identify Roe 1 within a certain time period is denied as it is now MOOT. Dismissal was entered as to Roe 1 on September 15, 2026.

6. CU0002114 Randy Lacy et al vs. Timothy Kendall Haevernick

No appearance required. Based on the declarations of counsel filed on September 18 and 21, 2026 including counsel's apparent willingness to take responsibility for both counsel's (plaintiffs') and their respective clients' failure to appear in person for the MSC in this matter, on the Court's own motion, the OSC is dismissed in its entirety.

7. CU0002764 Amrik Singh vs. Bruce Barth

No appearances required. In light of the proof of service of the Summons and Complaint filed on July 9, 2026, and on the Court's own motion, the OSC re Dismissal is dismissed. However,

the Court does note, the proof of service fails to indicate Defendant Barth was service with a copy of the Notice of Case Management Conference and admonishes Plaintiff such must still occur.

8. CU0002779 EDIK MEZHLUMYAN vs. KASHMIR SINGH et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for November 20, 2026 at 9:00 a.m.

9. CU0002801 In the Matter of Irina Naduhovskaya

No appearance required. Petitioner is directed to correct the issues below. The matter is continued to October 12, 2026 at 1:30 p.m. in Dept. A. Petitioner shall submit an Amended Petition no later than one week prior to the continued hearing date. Should counsel for Petitioner wish to appear on September 28, 2026 at 1:30 p.m. to walk through these issues with the Court, he may do so.

- The Court notes a petition requesting appointment of a guardian ad litem in this matter was filed on August 21, 2026, yet no proposed order was filed. Petitioner shall submit a proposed order re same.
- Issues with the Medical Expenses and Net Settlement Amount:
 - 12.a: The amount in 12.a(1) (\$3,727.00 as the total amount incurred) is not reflected elsewhere including in any attachments, nor is the amount of reductions in 12.a(3) (\$429.80) set forth anywhere else. In fact, 12(b)(2)(f)(ii)(C) indicates no reduction has been agreed to.
 - Further, please correct these discrepancies. 12.a states medical expenses paid in the amount of \$3,727.00, including:
 - \$989.71 paid by private health insurance;
 - \$429.80 in reductions;
 - \$989.71 total medical expenses to be paid or reimbursed from the proceeds; and
 - \$989.71 total amount of statutory or contractual liens.

Yet, the only billing provided indicates an amount owing to Tahoe Forest Hospital related to this incident in the sum of \$2,631.87, an amount indicated nowhere else in the petition. (Rather, the amount of \$3,727.00 is indicated as the total of expenses.) There is no evidence of a reduction of \$429.80, nor is there an explanation as to why there is an assertion \$989.71 has been paid, \$989.71 is to be paid, and \$989.71 is lien.

- 12.a(4) and 12.a(5) indicates there are both medical expenses to be reimbursed to an insurance plan and a statutory or contractual lien. However, only 12.b(2) shows a reimbursement with no reduction in the amount of \$989.71 is to be made to the plan, but 12.b(5)(ii) regarding statutory or contractual liens is unchecked.
- 14 is not filled out and does not include medical expenses listed in 12 or attorney's fees listed in 13a.